TRUST CHITSUNGO
versus
NEKAIDZO MTAPURI (in her capacity as Curator ad litem for Ezekiel Mtapuri) and
THE SHERIFF OF HIGH COURT

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE, 12 & 16 February 2026

Urgent Court Application

T.Muhlwa, for the applicant

J.D Dondo, for the first respondent

MUNANGATI- MANONGWA J: In the absence of a finding by this court of any reprehensible conduct on the part of the sheriff executing upon a competent order of this court, his actions cannot be deemed unlawful. In that regard, the actions by the second respondent herein when he evicted the applicant on the basis of a writ arising out of an order granted by this court cannot be classified as unlawful conduct leading to a claim for spoliation. In this case an application for a spoliation order was thrown out by the Magistrate court with this court doing the same on appeal. The applicant is back in this court seeking restoration to possession of Stand No. 9329 Amalinda Park, Harare, alleging that on 11 April 2025 he was unlawfully ejected and the locks to the premises were changed at the instance of the first respondent. The first respondent has raised a defence of *res judicata* and this court hereby upholds that defence. **Background**

The applicant avers that in September 2019 he entered into a provisional agreement of sale with Avborne Investments (trading as Procare Housing), allegedly acting under authority of a previous curator, and that he was granted vacant possession of the property. He contends that he remained in peaceful and undisturbed possession until 11 April 2025, when he was ejected pursuant to a writ issued under High Court case number HCH 2702/25.

The following facts are common cause. The applicant previously instituted spoliation proceedings in the Magistrates' Court arising from the same ejectment. The Magistrates'

Court dismissed the application. Following such dismissal the applicant appealed to the High Court.

The appeal was dismissed. The present application seeks identical relief, namely restoration of possession by way of the *mandament van spolie*.

The application is opposed by the first respondent only. The principal point *in limine* raised by the first respondent is that the matter is *res judicata*, having previously been determined by a competent court. Thus, the issue for determination is narrow: whether this court is barred from entertaining the present application by reason of prior proceedings between the same parties concerning the same relief. The first respondent submits that the matter has been finally determined and is therefore barred by the doctrine of *res judicata*.

The applicant contends that the Magistrates' Court dismissed the matter on jurisdictional grounds, and that the appeal was dismissed on the same basis, without a determination on the merits. He argues that, in the absence of a decision on the merits, *res judicata* does not apply.

The Law on *Res Judicata*

The requirements for a successful plea of *res judicata* are well established:

(a) the two actions must have been between the same parties, (or their privies);

(b) and founded upon the same cause of complaint

(c) concerning the same subject matter or relief;

(d) there being a prior final judgment by a competent court.

I hasten to state that it is further settled that the prior judgment must be final and on the merits. A dismissal purely on jurisdictional grounds does not ordinarily constitute a determination on the merits and will not sustain a plea of *res judicata*.

See *Herbstein and Van Winsen: The Civil Practice of the High Courts of South Africa*, 4th Ed at p 249 which remains persuasive authority in this jurisdiction. See also (*Banda & Ors* v *ZISCO SC 54/99, Shamrock Holdings (Pvt) Ltd* v *The Minister of Environment & Tourism & Ors* (SC21/10).

In casu, it is not in dispute that the parties are identical, the relief sought being restoration of possession by way of spoliation is identical, so is the factual basis of the relief sought which is the alleged unlawful ejectment of 11 April 2025. Equally, the cause of action is identical which is reliance on the *mandament van spolie*. The attempt to distinguish the

present proceedings on the basis that reference is now made to the Sheriff rather than the Messenger of Court does not alter the substance of the dispute. The *causa* and the relief remain unchanged.

The question that has to exercise the court's mind is whether the Magistrates' Court decision was on the merits? The ruling of the Magistrates' Court is before this court. The material part, reads:

"What is apparent is that there is a court order and writ which was used by the Sheriff of the High Court to eject respondent. In these circumstances the applicant cannot claim that he was despoiled of any property when a court order was used….The present application does not meet the requirements of spoliation."

This reasoning is plainly substantive. The court did not decline jurisdiction. It did not state that it was incompetent to determine the matter. On the contrary, it evaluated the requirements of the *mandament van spolie* namely, prior peaceful possession and unlawful dispossession. The court then concluded that the applicant had not established unlawful dispossession because the ejectment was effected pursuant to a court order. That constitutes a determination on the merits of the spoliation claim. The applicant's submission that the dismissal was jurisdictional is not borne out by the language of the ruling. The magistrate considered and rejected the claim on substantive grounds. The applicant appealed to the High Court. The presented grounds were:

i. The learned Magistrate grossly erred at law when he failed to realise that on balance of probabilities the Appellant had met the requirements for a spoliation order given the evidence which was placed before the court.

ii. The learned magistrate of the court aquo made an error at law and misdirected himself by holding that the granting of an order in favour of the Appellant was tantamount to reversing the High Court order in circumstances where the order under contestation was not against the Appellant. The appeal was dismissed. The grounds of appeal presented reflect *per se* that the determination was on merits. This court does not believe Mr. *Muhlwa*'s contention that the appellate court did not hear the matter on merits. Whilst there is no written judgment, whatever the reasoning of the appellate court, the dismissal had the effect of confirming the order of the Magistrates'

Court. The consequence is that the Magistrates' Court judgment stands as a final and binding determination between the parties. Unless and until set aside by a competent appellate forum, that judgment remains operative and conclusive.

This court cannot ignore or re-open a matter that has already been determined and confirmed on appeal. This court is in fact *functus officio* having made a final order on the matter when it dismissed the appeal. The court endorsed as correct the findings of the Magistrates Court putting closure to the matter which applicant seeks to resurrect on the same facts that led to dismissal. The first respondent, thus properly raised the issue of *res judicata* as all the requirements for *res judicata* are satisfied.

To entertain the present application would amount to permitting the re-litigation of an issue conclusively decided. The principle of finality in litigation is fundamental to the administration of justice. Parties are not entitled to multiple bites at the same cherry. Certainly, the applicant's salvation does not lie in instituting fresh proceedings seeking identical relief.

The plea of *res judicata* must therefore succeed.

Costs

The first respondent sought costs on a higher scale, including an order *de bonis propriis*. While the institution of fresh proceedings in the face of a final judgment amounts to impermissible re-litigation, the court has refrained from granting a punitive order against the applicant's legal practitioner personally. However, it is prudent that a legal practitioner seeks counsel when not sure about how to proceed in a matter. Failure to properly advise a client on straight forward legal issues and on basic law will in certain scenarios lead to the penalisation of a legal practitioner by ordering him or her to shoulder costs.

In this case the duplication of proceedings has unnecessarily burdened the first respondent and the court. In the circumstances, costs on a higher scale as between attorney and client are justified.

Accordingly, it is ordered as follows:

2. The application is dismissed.
3. The applicant shall pay the respondent's costs on a legal practitioner and client scale.

MUNANGATI- MANONGWA J......

1. The point *in limine* of *res judicata* is upheld.

Pritchard Attorneys, for the applicant.
Dondo and Partners, for the first respondent.